

In weighing the evidence presented to the jury, the Court finds that there was sufficient evidence to support a defense verdict in this case. Accordingly, the Court is convinced from reviewing the trial transcript and the record that reasonable inferences drawn from the record allowed the jury reached its verdict accordingly. There was no insufficiency of the evidence that leads this Court to conclude that the jury should have come to a different decision.

After reviewing the evidence in light of the statutory and decisional authority, the Court finds good cause to deny Plaintiff's Motion for New Trial.

Ruling

Plaintiff Ginger Conrad's Motion for New Trial is **denied**. Defendant's counsel is ordered to prepare and e-file a conforming order, attaching this tentative ruling, within five (5) days from the date of this hearing.

6. 9:00 AM CASE NUMBER: C22-02332
CASE NAME: KATTY LOPEZ VS. JAMES MARTIN
*HEARING ON MOTION IN RE: SET ASIDE ORDER OF DISMISSAL
FILED BY: LOPEZ, KATTY
TENTATIVE RULING:

Summary

Plaintiff Katy Lopez's Motion to Set Aside Dismissal is **granted** as set forth in this tentative ruling.

Background

In this litigation, filed on October 31, 2022, Plaintiff Katy Lopez alleges causes of action for premises liability against Defendant James B. Martin for an incident that occurred on October 30, 202. Plaintiff claims that she tripped and fell on a raised sidewalk area that is alleged to be owned, maintained, managed or operated by Defendant. Defendant has not been served. This case is approaching the 3 ½ year mark since filing. The court records demonstrate that Plaintiff's counsel, Margaret Y. Tai, has a history of failing to appear at scheduled case management conferences (CMC). She has not appeared at a CMC calendared for March 2, 2023, July 3, 2023, December 16, 2024, January 21, 2025, and on April 21, 2025. At the April 21, 2025 CMC, the Court dismissed this case for Plaintiff's failure to appear and to prosecute this case.

On October 16, 2026, Plaintiff's counsel, Margaret Y. Tai, filed a Motion to Set Aside Order of Dismissal on behalf of her client, Katy Lopez, asserting excusable neglect pursuant to Cal. Code of Civ. Proc. §473(b).

Analyses

In California, the timeline to set aside a case is six months if the reason to set aside the dismissal is due to for mistake or excusable neglect by an attorney. (CCP § 473(b)) The relevant portions of Cal. Code of Civ. Proc. § 473(b) state:

"The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the

party through the party's mistake, inadvertence, surprise, or excusable neglect. []and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken."

Applied here, the last date to file this motion was October 21, 2026. Counsel's motion is timely, filed on October 16, 2026, well within six months of the Court's order dismissing this case. In her declaration, Counsel Tai had attributed "serious health conditions, difficult rehabilitation period, and mental confusion" as a result of a life-threatening diagnosis, which she claims were the cause of her non-appearance. After considering the reasons for her non-appearance, the Court finds in its discretion that Counsel Tai's actions amount to excusable neglect.

Ruling

Plaintiff's Motion is **granted**. The dismissal is set aside, and this case is re-opened. Plaintiff is ordered to serve the complaint to Defendant James Martin no later than thirty (30) days from the date of this order, and to file proof of service. The Court sets a Case Management Conference for March 27, 2026 at 8:30 a.m. Plaintiff's counsel is ordered to file a case management conference statement pursuant to court rules and to appear via Zoom to provide an update to the Court on the status of this case.

7. 9:00 AM CASE NUMBER: C23-02289
CASE NAME: PROGRESSIVE WEST INSURANCE COMPANY VS. CRAIG CROSLEY
HEARING ON SUMMARY MOTION
FILED BY: CROSLEY, CRAIG
TENTATIVE RULING:

Crosley's motion for summary judgment and Progressive's motion for leave to file a first amended complaint are **continued** to February 25, 2026 at 9:00 a.m.

The Court requests supplemental briefing limited to whether, for purposes of cancellation under 10 CCR section 2632.19(e), it is legally material that the missing information be characterized as a vehicle identification number (VIN) rather than another form of identifying information, where Progressive renewed the policy with knowledge that it lacked information contends was necessary to identify the vehicle for underwriting purposes. The parties shall also address whether, under these circumstances, Progressive's proposed amendment to allege cancellation based on the failure to provide a "VIN, serial number, or other identifying information of the model of the golf cart" would be futile.

Simultaneous supplemental briefs shall be limited to 10 pages each and shall be filed no later than February 18 at noon, with a courtesy copy to the department. As an exception to the department's normal email policy, the parties may email their courtesy copies to the department, provided the email clearly states that electronic submission has been authorized by the Court, and all counsel of record are copied on the email.